

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: David Noriega	Team: Team # 5	CCRB Case #: 201103756	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 03/18/2011 6:45 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/18/2012	Precinct: 78
Date/Time CV Reported Fri, 03/18/2011 7:07 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/24/2011 3:50 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM William Kelly	28634	936855	NARCBBS
2. DT3 Christophe Greiner	01425	930271	NARCBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. CPT John Lewis	00000	894123	076 PCT
2. LT Kevin Carlton	00000	905511	NARCBBS
3. POM Jason Jeremiah	26736	936814	PSA 1
4. POM Kensigto Cunningham	06374	931616	076 PCT
5. SGT Fakrul Islam	03626	932815	PSA 1

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Christophe Greiner	Force: Det. Christopher Greiner used physical force against § 87(2)(b)	A . Unsubstantiated
B . POM William Kelly	Force: PO William Kelly used physical force against § 87(2)(b)	B . Unsubstantiated

Case Summary

This complaint was filed by telephone with IAB on March 18, 2011 by § 87(2)(b) a witness to the incident. IAB referred the case to the CCRB on March 24, 2011 under log number 11-12634. IAB also conducted an investigation under log number 11-12392.

On March 18, 2011, at approximately 6:45 p.m., at § 87(2)(b) in Brooklyn, § 87(2)(b) was arrested by PO William Kelly and Det. Christopher Greiner of Narcotics Borough Brooklyn South. § 87(2)(b) swallowed narcotics during the course of his arrest § 87(2)(b). The following allegations emerged from the incident:

- **Allegation A – Force:** PO William Kelly used physical force against § 87(2)(b)
- **Allegation B – Force:** Det. Christopher Greiner used physical force against § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations A & B** be closed as **unsubstantiated**.

IAB closed its investigation into the allegations “Prisoner DOA in NYPD custody” and “FADO Force,” both pleaded against PO Kelly and Det. Greiner, as “Information and Intelligence,” meaning no wrongdoing was found and the findings were presented for informational purposes only.

Results of Investigation

Civilian Statements

Complainant/Witness: § 87(2)(b)

§ 87(2)(b) *s pedigree and employment information are unknown.*

Statements to IAB

On March 28, 2011, § 87(2)(b) provided a statement to a 911 operator and subsequently spoke over the telephone to an officer at the IAB Command Center [Encl. 2 A-B]. On March 30, 2011, she was interviewed by telephone by Sgt. Nicole Ruggiero of IAB [Encl. 6 A-B]. § 87(2)(g)

On March 28, 2011, shortly after 7:00 p.m., § 87(2)(b) saw four police officers arresting § 87(2)(b) outside of § 87(2)(b). § 87(2)(b) described them only as Hispanic officers in uniform. § 87(2)(b) resisted arrest by “shaking [the officers] off” by moving his upper body around. The officers brought § 87(2)(b) to the ground. § 87(2)(b) then saw § 87(2)(b) enter what appeared to be a seizure (his body was convulsing). She also saw him bleeding from somewhere in the head, though she could not specify where. While § 87(2)(b) was still convulsing, the officers lifted him up and placed him in the back of a marked police van.

At this point, § 87(2)(b) called 911, primarily to request an ambulance. § 87(2)(b) saw an officer she could not describe performing CPR on § 87(2)(b) in the back of the van. The officers then transported § 87(2)(b) away from the scene.

Sgt. Ruggiero’s report indicates that § 87(2)(b) was reluctant to be interviewed or to further cooperate with the investigation, and refused to provide the investigating officer with a complete address.

Witness: § 87(2)(b)

§ 87(2)(b)'s pedigree and employment information are unknown.

Statements to IAB

§ 87(2)(b) was interviewed by telephone by Sgt. Crinela Ianas of IAB on March 21, 2011 [Encl. 7]. This conversation was not recorded, and the following summary is based on Sgt. Ianas's written report.

§ 87(2)(b) stated that she was outside of § 87(2)(b) when she saw numerous officers escorting § 87(2)(b) out of the building. She overheard one of the officers ordering § 87(2)(b) to "spit it out." She then saw an officer, whom she described only as a black male, choking § 87(2)(b). § 87(2)(b) clarified to Sgt. Ianas that by this she meant seeing the officer reaching into § 87(2)(b)'s mouth. § 87(2)(b) also heard an officer informing § 87(2)(b)'s mother (identified by the investigation as § 87(2)(b)) that § 87(2)(b) had swallowed narcotics. The officers then placed § 87(2)(b) inside a van, which § 87(2)(b) described as unmarked. § 87(2)(b) kicked the door open, and an officer slammed the door on his leg.

§ 87(2)(b) then observed an officer, whom she could describe only as a white male, performing CPR on § 87(2)(b) while another officer reached with his fingers inside § 87(2)(b)'s mouth. § 87(2)(b) then appeared to go into a seizure. Sgt. Ianas's report is unclear on whether § 87(2)(b) saw this occur inside the unmarked van or elsewhere; it states, however, that § 87(2)(b) then saw the officers placing § 87(2)(b) inside a marked van, at which point § 87(2)(b) appeared unresponsive.

Statements to CCRB

§ 87(2)(b) provided a telephone statement to the undersigned investigator on April 14, 2011 [Encl. 9]. § 87(2)(g)

§ 87(2)(b) described the officers handling § 87(2)(b) roughly, including pulling his handcuffed arms up behind his back as they pushed him towards the car. § 87(2)(b) reiterated that she saw an officer, described as a black male, choking § 87(2)(b) but described this action as squeezing the area around the center of § 87(2)(b)'s throat. The same officer then inserted his fingers into § 87(2)(b)'s mouth. A second officer, whom § 87(2)(b) described only as a white male, then punched § 87(2)(b) in the stomach. A large crowd had gathered at this point, some of which protested the officers' actions.

The officers placed § 87(2)(b) inside one van, but subsequently removed him, slamming him face-first onto the ground. § 87(2)(b) could hear a thud when § 87(2)(b) struck the ground. § 87(2)(b) could not see whether § 87(2)(b)'s head made contact with the ground. Shortly thereafter, he began to convulse. One of the officers took a bottle of water from a passerby and began pouring the water onto § 87(2)(b)'s head and into his mouth. § 87(2)(b) continued to convulse, but then became completely motionless. This caused the crowd to become extremely agitated. The officers placed § 87(2)(b) back in the same van, bending his knees so that they could close the door, and drove away from the scene.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) old at the time of the incident, is a black female § 87(2)(b) with brown eyes and brown and grey hair.
- § 87(2)(b)

Statement to IAB

§ 87(2)(b) was interviewed by Sgt. Nelson Villafane of IAB at § 87(2)(b)

on March 18, 2011 [Encl. 3]. § 87(2)(g)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on June 2, 2011 [Encl. 10 A-F]. She began by informing the undersigned that § 87(2)(b) mother of § 87(2)(b) had died of a heart attack in the months after the incident. She could not specify the date this occurred, but indicated that it had happened recently (i.e., shortly before § 87(2)(b)'s interview).

On March 18, 2011, at approximately 6:45 p.m., § 87(2)(b) drove home to § 87(2)(b) when she saw numerous police vehicles and a large crowd gathered in front of the building. From inside her car, she could see two police officers in plainclothes, one black male and one white male, struggling with § 87(2)(b) in the back seat of a marked RMP. The officers appeared to be struggling to pull § 87(2)(b) out of the car.

§ 87(2)(b) parked her car out of sight of the building, then returned on foot to join the crowd watching the incident. § 87(2)(b) saw officers, whom she could not describe, successfully pulling § 87(2)(b) out of the car and placing him on the ground. She could not describe the force with which § 87(2)(b) made contact with the ground. § 87(2)(b) could only see § 87(2)(b)'s legs and part of his lower torso behind the marked RMP. When asked to describe how the officers were handling § 87(2)(b), § 87(2)(b) stated that they were "not gentle," but could not provide additional detail.

§ 87(2)(b) then saw § 87(2)(b) (whom she knows personally) and an officer (who later identified himself to her as Cpt. John Lewis of the 76th Precinct) standing around § 87(2)(b). They appeared to be talking to § 87(2)(b) as well as to each other and to other officers on the scene. § 87(2)(b) could not hear their conversation, but was informed later by § 87(2)(b) that she had asked the officers to procure water for § 87(2)(b) and had repeatedly told § 87(2)(b) to "spit it out." § 87(2)(b) refused to elaborate on the meaning of this statement.

§ 87(2)(b) then saw § 87(2)(b) begin to convulse. Although her vision was partially blocked by the RMP, § 87(2)(b) stated that neither § 87(2)(b) Cpt. Lewis nor any other officers on the scene appeared to take any immediate action with regards to § 87(2)(b)'s body while he was convulsing. § 87(2)(b) then became motionless, and several officers, whom § 87(2)(b) could not describe, lifted him and placed him inside a marked police van. The officers drove this van away from the scene.

§ 87(2)(b) then approached § 87(2)(b) and offered to take her to the hospital. They ascertained from officers on the scene that § 87(2)(b) was being transported to § 87(2)(b) and drove there immediately. After waiting in the lobby for a time, § 87(2)(b) and § 87(2)(b) were informed by a female doctor that § 87(2)(b) had died. The doctor indicated the cause of death as a heart attack caused by a drug overdose.

Witness: § 87(2)(b)

- § 87(2)(b)'s pedigree and employment information are unknown.

Statement to IAB

§ 87(2)(b) was interviewed by Sgt. Nelson Villafane and Sgt. Timothy Dillon of IAB at § 87(2)(b) on March 18, 2011 [Encl. 4].

§ 87(2)(b) stated that a friend alerted her to the fact that § 87(2)(b) was being arrested. When she walked outside, she saw officers trying to place § 87(2)(b) inside an RMP; § 87(2)(b)

resisted by kicking the door. § 87(2)(b) ended up lying across the back seat with his head out one door and his feet out the other. An officer—a light skinned male in plainclothes wearing a backwards baseball cap—was leaning over § 87(2)(b)'s head and repeatedly slapping him in the face, telling him to open his mouth. § 87(2)(b) asked a female officer what was happening, and was told that the officers believed § 87(2)(b) had drugs in his mouth. The aforementioned male officer placed his thumb behind § 87(2)(b)'s ear; the female officer explained to § 87(2)(b) that this was intended to cause § 87(2)(b) to open his mouth.

§ 87(2)(b) stated that § 87(2)(b) was bleeding from the nose and mouth; that he at one point appeared to be having a seizure; that officers repeatedly yelled at him to open his mouth; that officers called repeatedly for an ambulance but none arrived; and that § 87(2)(b) was ultimately placed inside a van and transported from the scene. The order of these events is not immediately clear in § 87(2)(b)'s statement. § 87(2)(b) stated that she at no point saw any officers striking § 87(2)(b) with an object.

Notice of Claim

The notice of claim filed on § 87(2)(b)'s behalf on § 87(2)(b) [Encl. 11 A-D], states that, "Despite being handcuffed, § 87(2)(b) was subjected to continual blows, choking as well as other unwarranted physical force."

Witness: § 87(2)(b)

- § 87(2)(b)'s pedigree and employment information are unknown.

Statement to IAB

§ 87(2)(b) a § 87(2)(b)-floor resident of § 87(2)(b) was interviewed at her apartment by Sgt. Timothy Dillon and Sgt. Nelson Villafane of IAB on March 18, 2011 [Encl. 5 A-B].

§ 87(2)(b) stated that she witnessed the incident from her apartment window. She observed two plainclothes officers attempting to place § 87(2)(b) who was in handcuffs, in the back of an RMP, but § 87(2)(b) resisted these efforts by not bending his head down and by moving his upper body around. § 87(2)(b) focused her attention away from § 87(2)(b) and towards the crowd of civilians that was forming and yelling at the officers. When she turned her attention back to § 87(2)(b) he was lying on the street and convulsing. 5 to 8 officers picked him up, placed him in the back of a police van, and transported him away from the scene.

Attempts to Contact Civilians

The undersigned investigator spoke to § 87(2)(b) by telephone on April 6, 2011. § 87(2)(b) stated that she had no desire to cooperate with any investigation, refused to provide a phone statement, and refused to provide additional contact information.

During her initial phone statement on April 14, 2011, § 87(2)(b) scheduled an appointment for a sworn statement on April 20, 2011. The undersigned offered to interview § 87(2)(b) at her place of employment, but she stated this would not be feasible, and § 87(2)(b) opted for an interview at the CCRB. On the date of the interview, the undersigned called § 87(2)(b) to remind her of her appointment; she answered briefly, indicated she would call the undersigned in 15 minutes, then failed to do so. § 87(2)(b) did not appear for her interview appointment and did not contact the CCRB to cancel or reschedule. The undersigned called her on the same date to reschedule the appointment, but she did not respond to the call or the corresponding voicemail message. The undersigned mailed two letters to § 87(2)(b) between April 21, 2011 and May 9, 2011. The undersigned placed one final call to § 87(2)(b) on June 16, 2011; during the ensuing conversation, § 87(2)(b) referred to the undersigned's efforts to contact her as "harassment" and refused to reschedule an interview appointment or to cooperate any further with the investigation.

The undersigned conducted a canvass at the incident location on April 6, 2011, and spoke to numerous residents in public areas of the Wyckoff Gardens development. The majority either stated that they had not witnessed the incident or refused to discuss it. The undersigned distributed several business cards to residents, asking that they be passed to witnesses. The undersigned spoke to a woman who identified herself as § 87(2)(b) and stated that her children, who live with her at Wyckoff Gardens, had witnessed the incident. Between April 6, 2011 and July 5, the undersigned placed 8 telephone calls and mailed 2 letters in an effort to contact § 87(2)(b)'s children at the telephone numbers and address she provided; although § 87(2)(b) responded to some of the undersigned's calls, she did not place her children in contact with the undersigned and eventually stopped returning the undersigned's calls.

During the April 6, 2011 field visit, the undersigned knocked on § 87(2)(b)'s door. A woman who did not identify herself answered the door; when the undersigned identified himself and explained his reasons for visiting, the woman said, "Talk to my lawyer," provided the undersigned with a business card, and shut the door. The business card listed contact information for § 87(2)(b), an attorney § 87(2)(b). On April 21, 2011, the undersigned spoke to § 87(2)(b) who confirmed that he was retaining § 87(2)(b) as his client, and indicated he had filed a notice of claim on her behalf. § 87(2)(b) deferred his decision to have the undersigned interview § 87(2)(b). The undersigned learned of § 87(2)(b)'s death from § 87(2)(b) on June 2, 2011, and on August 24, 2011, § 87(2)(b) informed the undersigned that the firm was no longer representing anybody in regards to § 87(2)(b)'s case.

NYPD Statements:

Subject Officer: PO WILLIAM KELLY

- *PO Kelly, § 87(2)(b) old at the time of the incident, is a white male § 87(2)(b), with brown hair and green eyes.*
- *On the date of the incident, PO Kelly was assigned to narcotics enforcement within the 76th and 78th Precincts with Det. Christopher Greiner, in plainclothes, assigned to unmarked rental auto # 3638, from 12:00 p.m. until 8:33 p.m.*

Memo Book

PO Kelly made memo book entries documenting his arrival at § 87(2)(b) at 6:30 p.m., § 87(2)(b)'s arrest at 6:45 p.m., and their departure to § 87(2)(b) at 7:00 p.m. [Encl. 13 A-C].

CCRB Testimony

PO Kelly was interviewed at the CCRB on January 24, 2012 [Encl. 13 D-F].

At approximately 6:30 p.m. on March 18, 2011, PO Kelly and Det. Greiner arrived at § 87(2)(b) in Brooklyn in order to conduct reconnaissance of the building in preparation for a search warrant that was to be executed by their command the following day. PO Kelly and Det. Greiner observed the building from the outside, including walking around to the rear to establish the location of the targeted apartment's windows. They then entered the building through its rear entrance.

As soon as the officers opened the door, PO Kelly observed § 87(2)(b) who was standing immediately inside the building. In one hand, § 87(2)(b) was holding a handful of what appeared to PO Kelly to be plastic twists of crack cocaine: PO Kelly recalled seeing transparent plastic containing a white, rocky substance. The total size of these twists was approximately that of a golf ball, fitting within the palm of § 87(2)(b)'s hand.

PO Kelly and Det. Greiner immediately addressed § 87(2)(b) saying, "Police! Drop it!" § 87(2)(b)

§ 87(2)(b) reacted by turning his back to the officers and bringing the hand containing the narcotics to his mouth. PO Kelly grabbed § 87(2)(b) by his right arm, and Det. Greiner grabbed him by his left. The officers attempted to bring § 87(2)(b)'s arms behind his back to place him in handcuffs, but § 87(2)(b) resisted by forcefully pulling his arms forward in front of his body. During this struggle, PO Kelly was able to see that § 87(2)(b) had stuffed all of the plastic twists he had been holding into his mouth, and was not continuously chewing them.

As § 87(2)(b) pulled his arms forward, he also began walking towards the front lobby of the building, pulling the officers along with him. During this portion of the struggle, PO Kelly and Det. Greiner did not use any physical force other than holding § 87(2)(b) by the arms (PO Kelly specifically recalled grabbing § 87(2)(b) around the forearm or wrist) and attempting to force them behind his back.

§ 87(2)(b) managed to pull the officers into the front lobby of the building, at which point he and PO Kelly fell to the ground. PO Kelly was not able to describe precisely what caused the fall, but described it as incidental to their struggle. PO Kelly did not recall what part of § 87(2)(b)'s body made contact with the ground. Once PO Kelly and § 87(2)(b) were on the ground, the officers were able to force § 87(2)(b)'s arms behind his back and place him in handcuffs. Immediately thereafter, Det. Greiner radioed for assistance. PO Kelly did not recall whether Det. Greiner specified that § 87(2)(b) had swallowed narcotics in his radio transmission.

PO Kelly stated that, as a result of this struggle, he pulled a muscle in his shoulder, sustained during the effort to force § 87(2)(b)'s arms behind his back. PO Kelly was consequently on Line of Duty leave for two weeks.

The officers then lifted § 87(2)(b) to his feet and escorted him out the front door of the building. By this point, multiple police units had begun to arrive, and a crowd of civilians was forming. PO Kelly did not recall the identities of any specific officers that had arrived on scene at this point. § 87(2)(b) was no longer resisting and was walking voluntarily. However, he continued chewing the narcotics, and a white foam had begun to form around his mouth. PO Kelly recalled this as the first moment that officers called EMS to the scene; however, he could not recall which officers specifically did so.

PO Kelly and Det. Greiner attempted to place § 87(2)(b) inside a marked RMP. However, § 87(2)(b) had begun to go limp, and he was too tall for the officers to be able to close both RMP doors while he was prone in the back seat. PO Kelly and Det. Greiner then lifted § 87(2)(b) out of the back seat and placed him on the street next to the car. PO Kelly did not specifically recall any other officers making physical contact with § 87(2)(b) during this time, but acknowledged that other officers may have helped him and Det. Greiner in lifting and moving § 87(2)(b).

Once § 87(2)(b) was on the ground, his body became completely limp. He appeared conscious: his eyes were open and he seemed to be looking around, and he continued chewing the narcotics. By this point, the foam coming out of his mouth had begun to turn reddish in color.

At this point PO Kelly became aware of the presence of Cpt. John Lewis, the commanding officer of the 76th Precinct, and of § 87(2)(b) who repeatedly yelled at § 87(2)(b) to "Spit it out!" § 87(2)(b) also repeatedly said to § 87(2)(b) "It's not worth it." A larger crowd of civilians had gathered by this point, but other than § 87(2)(b) no civilians were allowed to directly approach the scene. Cpt. Lewis and other officers on the scene repeatedly called for EMS and ESU, asking for estimated times of arrival. The officers waited with § 87(2)(b) on the ground for approximately one minute before Cpt. Lewis ordered them to place § 87(2)(b) in a marked police van and transport him directly to the hospital. PO Kelly, Det. Greiner and possibly other officers (whose identities PO Kelly could not recall) lifted § 87(2)(b) placed him in the van, and entered after him.

PO Kelly recalled that when he, Det. Greiner, and any other officers who may have assisted lifted and moved § 87(2)(b) they did so by his shoulders and legs. Neither PO Kelly, Det.

Greiner nor any other officers ever made any direct efforts to remove the narcotics from § 87(2)(b)'s mouth, nor did they ever make direct contact with his neck or throat; no officers ever struck § 87(2)(b) anywhere on his person in any way; and PO Kelly never saw § 87(2)(b)'s head striking the ground or any other surfaces. PO Kelly did not recall seeing any other officers from Narcotics Borough Brooklyn South at the scene of the incident, though he did recall subsequently seeing Lt. Kevin Carlton, his direct supervisor, at the hospital.

PO Kelly did not recall seeing § 87(2)(b)'s body convulse at any point. When asked whether § 87(2)(b) at any point appeared to go into a seizure, PO Kelly stated that he does not know what a seizure looks like and could not answer the question conclusively.

Inside the van to the hospital were § 87(2)(b), PO Kelly, Det. Greiner, Cpt. Lewis, and a driver, identified by IAB as PO Jason Jeremiah of PSA 1. When they arrived at § 87(2)(b), the officers transferred § 87(2)(b) to medical personnel. PO Kelly remained at the hospital until § 87(2)(b) was pronounced dead.

Subject Officer: DET. CHRISTOPHER GREINER

- *Det. Greiner, § 87(2)(b) old at the time of the incident, is a white male, § 87(2)(b) with brown hair and blue eyes.*
- *On the date of the incident, Det. Greiner was assigned to narcotics enforcement within the 76th and 78th Precincts with PO William Kelly, in plainclothes, assigned to unmarked rental auto # 3638, from 12:00 p.m. until 8:33 p.m.*

Memo Book

Det. Greiner made memo book entries documenting his arrival at § 87(2)(b) at 6:30 p.m., § 87(2)(b)'s arrest at 6:45 p.m., and his departure for § 87(2)(b) at 7:00 p.m. [Encl. 14 A-B].

CCRB Testimony

Det. Greiner was interviewed at the CCRB on January 18, 2012 [Encl. 15 A-B]. § 87(2)(g)

Det. Greiner recalled initially seeing § 87(2)(b) holding, in one hand, multiple small twists of crack cocaine and, in the other, a larger plastic bag; when the officers first walked in the building, § 87(2)(b) was in the process of transferring the former into the latter. Det. Greiner recalled the bundle of twists of crack cocaine approximately the size of softball.

Det. Greiner did not recall § 87(2)(b) ever falling or being brought to the ground during the course of the officers' struggle to arrest him. After § 87(2)(b) had pulled them into the front lobby of the building, Det. Greiner and PO Kelly were able to force his arms behind his back and place him in handcuffs while all three were still standing.

Det. Greiner recalled Cpt. Lewis walking into the lobby soon after § 87(2)(b) was handcuffed and ordering the officers to bring § 87(2)(b) outside. Cpt. Lewis had already called for medical assistance, but, after waiting outside for approximately one minute, he ordered the officers to place § 87(2)(b) in a van and transport him to the hospital (Det. Greiner did not state that the officers had initially attempted to place § 87(2)(b) in a different vehicle). By this time, § 87(2)(b) had already gone completely limp.

Det. Greiner stated that only he and PO Kelly ever made physical contact with § 87(2)(b). Neither officer ever struck § 87(2)(b) in any way, made any direct efforts to remove the narcotics from his mouth, or made contact with his neck or throat. Det. Greiner did not see § 87(2)(b)'s head strike the ground or any other surface at any point in the incident. The matter of whether Det. Greiner was injured during the incident was not raised either by Det. Greiner or by the investigators.

Witness Officer: SGT. FAKRUL ISLAM

- *At the time of the incident, Sgt. Islam was a § 87(2)(b)-old Asian male assigned to PSA 1.*

Statement to IAB

Sgt. Islam was interviewed by Sgt. Frank Wolf and Det. Vincent Sinnott of IAB on March 19, 2011 [Encl. 12 B]. He stated that he was on patrol in a marked van operated by PO Jason Jeremiah when he responded to a call for assistance at § 87(2)(b). He saw “several narcotics officers” with § 87(2)(b) telling him to remove something from his mouth. Cpt. Lewis instructed him to perform crowd control, and he complied. Cpt. Lewis then instructed him to bring his marked van in front of the building to transport § 87(2)(b). He assisted the narcotics officers in placing § 87(2)(b) in the van, and described him as “dead weight.” Sgt. Islam accompanied the officers with § 87(2)(b) to § 87(2)(b). Sgt. Islam did not observe any injuries on § 87(2)(b).

Witness Officer: PO KENSINGTON CUNNINGHAM

- *At the time of the incident, PO Cunningham was a § 87(2)(b)-old black male assigned to the 76th Precinct Anti-Crime unit.*

Statement to IAB

PO Cunningham was interviewed by Sgt. Frank Wolf and Det. Vincent Sinnott of IAB on March 19, 2011 [Encl. 12 B]. He stated that he responded to the call for assistance at § 87(2)(b) to find narcotics officers escorting § 87(2)(b) out of the building. § 87(2)(b) appeared to be chewing something; when he opened his mouth, PO Cunningham was able to see a white powdery substance. PO Cunningham assisted the narcotics officers in trying to place § 87(2)(b) in the back of an RMP; however, § 87(2)(b) resisted, and the officers placed him on the ground next to the car. § 87(2)(b) kicked at the officers while on the ground, so the officers had to hold him still. Officers repeatedly ordered § 87(2)(b) to spit out what was in his mouth. PO Cunningham became involved in crowd control before § 87(2)(b) was placed in the van, and as such did not witness the end of the incident.

Witness Officer: CPT. JOHN LEWIS

- *At the time of the incident, Cpt. Lewis was a § 87(2)(b)-old white male and was the commanding officer of the 76th Precinct.*

Statement to IAB

Cpt. Lewis was interviewed by Sgt. Frank Wolf and Det. Vincent Sinnott of IAB on March 19, 2011 [Encl. 12 E]. He stated that, when he arrived on the scene, there were approximately 60 to 70 civilians and 15 to 20 officers present. Cpt. Lewis saw officers trying to place § 87(2)(b) in a Housing RMP, but due to his “violent resisting” the officers placed him on his side on the ground. Officers “tried to get the objects out of § 87(2)(b)’s mouth” (there is no indication of how they did this) unsuccessfully. No officers struck § 87(2)(b) at any point. EMS and ESU were called, but Cpt. Lewis decided that they were taking too long and made the order to transport § 87(2)(b) to the hospital in a police van. Streets were closed between § 87(2)(b) and § 87(2)(b) to expedite their arrival to the emergency room.

Witness Officer: PO JASON JEREMIAH

- *At the time of the incident, PO Jeremiah was a § 87(2)(b)-old black male assigned to PSA 1.*

Statement to IAB

PO Jeremiah was interviewed by Sgt. Frank Wolf and Det. Vincent Sinnott of IAB on March 19, 2011 [Encl. 12 E]. He stated that he was busy conducting crowd control during the majority of his time at the scene. He did so until he was ordered by Cpt. Lewis to transport § 87(2)(b) to the hospital in his van.

Additional Officers

Lt. Kevin Carlton of Narcotics Borough Brooklyn South was also interviewed by IAB [Encl. 12 D-E]; he indicated that he was not present at § 87(2)(b) and obtained all his information regarding the incident from PO Kelly.

Medical Records

Because a HIPAA compliance form could not be obtained from the victim or his next of kin, no medical records were obtained by the CCRB. However, IAB's communications with medical personnel in regards to this case are summarized below.

NYPD Documents

IAB Investigation

Sgt. Jennifer Joyce of IAB was present for the autopsy of § 87(2)(b) conducted on March 30, 2011 [Encl. 17 D]. The autopsy was conducted by Dr. Leffers (first name unknown) at the Kings County Office of the Chief Medical Examiner. § 87(2)(b), § 87(2)(a)

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IAB did not interview PO Kelly or Det. Greiner.

The closing report for the IAB investigation [Encl. 17 A-B], in the form of a memo from Inspector Patrick J. Keane to the Chief of Internal Affairs, states that "Based on the facts and circumstances surrounding this incident, it was clear that § 87(2)(b)'s unfortunate demise was due to his decision to ingest illegal narcotics." The memo recommends that the allegations ("Prisoner DOA in NYPD custody" and "FADO Force," both pleaded against Det. Greiner and PO Kelly) be closed as "Information and Intelligence," meaning no wrongdoing was found and the findings are presented for informational purposes only.

SPRINT Reports

SPRINT reports corresponding to this incident [Encl. 16 A-X] indicate that a 10-85 call for assistance was made at the location at 6:44 p.m., after which numerous units begin to arrive. At 6:49 p.m., EMS was called by authority of the commanding officer of the 76th Precinct (i.e., Cpt. Lewis). After two requests for an estimated time of arrival, EMS requested clarification for the incident location: § 87(2)(b) or § 87(2)(b). The location was clarified, and EMS gave a final estimated time of arrival of 7:01 p.m. There is no clear indication of when § 87(2)(b) was removed from the scene by police. At 7:00 p.m., a Level 1 Mobilization was called for crowd control, and all subsequent entries correspond to this mobilization.

Aided Reports

Aided Reports were prepared for both PO Kelly and Det. Greiner [Encl. 18 A-J]. § 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming (among other things) wrongful death, assault and battery, and negligence, and seeking \$25 million as redress. On May 16, 2012, Bruce Gomez of the New York City Law Department informed the undersigned by telephone that, while a 50-H hearing had been scheduled for § 87(2)(b), this hearing was cancelled and was not subsequently rescheduled.

Civilian Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) [Encl. 1 E].
- § 87(2)(b) was a victim in CCRB case § 87(2)(b)

Subject Officer CCRB Histories

- PO William Kelly has been a member of the service for 7 years and there are no substantiated CCRB allegations against him [Encl. 1 A].
- Det. Christopher Greiner has been a member of the service for 9 years and there are no substantiated CCRB allegations against him [Encl. 1 B-C].

Conclusion

Identification of Subject Officers and Pleading of Allegations

The IAB investigation identified PO Kelly and Det. Greiner as the subject officers. Furthermore, both officers confirmed that they were present from the beginning of the incident and, of the officers on the scene, were the most directly and consistently involved in the physical apprehension of § 87(2)(b). Although there are indications that other officers made physical contact with § 87(2)(b) at various points in the incident, there was no documentary or testimonial evidence to specifically tie these additional officers to any alleged excessive force.

Furthermore, although § 87(2)(b) and § 87(2)(b) made allegations more specific than general force, neither one provided sworn testimony to the CCRB. § 87(2)(b) the only civilian to do so, did not claim to have witnessed any excessive force. However, because of the impossibility of obtaining or attempting to obtain testimony from § 87(2)(b) the case could not be truncated on the basis of an absence of civilian testimony.

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Force: PO William Kelly used physical force against § 87(2)(b)

Allegation B – Force: Det. Christopher Greiner used physical force against § 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) outright refused to cooperate with the CCRB; § 87(2)(b) provided a single phone statement but subsequently rebuffed the undersigned's efforts to reach out to her; § 87(2)(b) initially rejected contact and died soon thereafter; and a canvass of the incident location and subsequent follow-up contact attempts to potential witnesses were unsuccessful. For these reasons, the investigation was predicated on the unsworn and incomplete statements of a handful of witnesses.

Collectively, these witnesses alleged that officers punched § 87(2)(b) choked him, slammed him against the ground (possibly causing him to strike his head), and generally treated him roughly while outside of § 87(2)(b)

§ 87(2)(g)

PO Kelly and Det. Greiner acknowledged struggling at length with § 87(2)(b). However, they described this struggle as occurring inside the lobby of the building, § 87(2)(g)

Both officers denied striking § 87(2)(b) choking him, or slamming him against the ground. However, their statements were unclear regarding the role any other officers may have had in handling § 87(2)(b) once he was outside of the building. Similarly, the officers interviewed by IAB described the extent of physical contact with § 87(2)(b) as lifting him into and out of vehicles and onto the ground. No officers described excessive or injurious force.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A** and **B** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date